

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
COUNTY CIVIL

COLONIAL MANOR MHC HOLDINGS, LLC,
d/b/a COLONIAL MOBILE MANOR,
Plaintiff,

Case No.: 2020-CC-

vs.

SANDRA JEANNE ROBERTS
and ANY UNKNOWN TENANT(s),
Defendants.

COMPLAINT SEEKING EVICTION, DAMAGES AND OTHER RELIEF

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, sues the Defendant(s),
SANDRA JEANNE ROBERTS and any UNKNOWN TENANT(s), in possession of certain
premises more fully described below, and alleges:

COUNT I
ACTION FOR POSSESSION

1. This is an action for removal of a mobile home park lot tenant and possession of
real property in Manatee County, Florida, as authorized by Section 723.061(1)(a) of Florida
Statutes.

2. Plaintiff is a Foreign Limited Liability Company owning and operating a mobile
home park located in Pasco County, Florida.

3. Defendant, SANDRA JEANNE ROBERTS, is the last known registered owner of
the mobile home located 900 9th Avenue East, Lot #120, Palmetto, Manatee County, Florida

34221. SANDRA JEANNE ROBERTS is believed to have passed away on unknown date. A death certificate has been requested.

4. Defendant, SANDRA JEAN ROBERTS, was a natural person at all times relevant believed to reside in a mobile home located at 900 9th Avenue East, Lot #120, Palmetto, Manatee County, Florida 34221.

5. Defendant(s), ANY UNKNOWN TENANT(s), may reside on real property at 900 9th Avenue East, Lot #120, Palmetto, Manatee County, Florida 34221, but if so, does without the consent of the Plaintiff.

6. Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, owns, in fee simple, the real property located at 900 9th Avenue East, Palmetto, Manatee County, Florida 34221, known as COLONIAL MOBILE MANOR.

7. Plaintiff, as landlord, leased to Defendant, SANDRA JEANNE ROBERTS, Lot #120, of the above-stated mobile home park at a monthly rental fee of \$597.00. The Defendant owes lot rent for the months of January and February 2020 in the sum of \$1,329.00 pursuant to the Rental Agreement.

8. Defendant, SANDRA JEANNE ROBERTS, is in default of the Rental Agreement with Plaintiff by failure to pay the total sum of \$1,329.00 as of February 6, 2019.

9. On February 6, 2020, Plaintiff served by posting on Defendant(s), SANDRA JEANNE ROBERTS, a Five-Day Notice of Termination of Tenancy for Non-payment of Rent for the rent due at that time. A copy of this Notice is attached and marked as Plaintiff's Exhibit A.

10. On February 6, 2020, Plaintiff also mailed a Five-Day Notice of Termination of Tenancy for Non-payment of Rent to SANDRA JEANNE ROBERTS in care of by Wayne Fleury at 8 Pine Grove Road, Westford, Massachusetts 01886. A copy of the certified receipt is attached and marked as Plaintiff's Exhibit B.

11. On February 27, 2020 Plaintiff delivered by Certified Mail/Return Receipt Requested the Five Day Notice of Termination of Tenancy to Defendant SANDRA JEANNE ROBERTS at 900 9th Avenue East, Lot #120, Palmetto, FL 34221 in compliance with Fla. State §773.061(4) which requires all notices pertaining to terminations of tenancy be sent to the mobile home owner and tenant and occupant by certified or registered mail, return receipt requested. A true copy of the envelope with certified mail receipt is incorporated into this complaint as Exhibit C.

12. Defendants SANDRA JEANNE ROBERTS and ANY UNKNOWN TENANT(s), have failed to make the payment of past due rent, and late fees within five (5) days of delivery of the Notice and continue to refuse to pay the amounts due and owing to Plaintiff.

13. ANY UNKNOWN TENANT(S) may reside or have an interest in Lot #120 of COLONIAL MANOR MHC HOLDINGS, LLC, but said residence is without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.

14. Pursuant to the Rental Agreement and Section 723.068 of Florida Statutes, Plaintiff is entitled to costs and an award of attorney fees.

15. Plaintiff is entitled to the summary procedure of Section 51.011 of the Florida Statutes.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney fees against Defendant(s), SANDRA

JEANNE ROBERTS, WAYNE R. FLEURY, and ANY UNKNOWN TENANT(s), and such other and further relief as the Court may deem proper.

COUNT II
ACTION FOR DAMAGES (RENTAL)

16. This is an action seeking less than \$15,000.00 excluding costs, interest and attorney fees.

17. Plaintiff re-alleges the facts contained within paragraphs 1 through 14 as though fully set forth herein.

18. Defendant, SANDRA JEANNE ROBERTS, owes the Plaintiff a sum less than \$15,000.00 plus interest, costs and reasonable attorney fees.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, SANDRA JEANNE ROBERTS, and for damages, costs and a reasonable attorney's fee.

COUNT III
ACTION TO ENFORCE LANDLORD'S LIEN

19. This is an action seeking to enforce a landlord's lien pursuant to Sections 713.691 and 713.77 of Florida Statutes.

20. The Plaintiff re-alleges the facts contained within paragraphs 1 through 17 and paragraphs 18 through 23 as though fully set forth herein.

21. Defendant, SANDRA JEANNE ROBERTS is the registered owner of a 1972 *Manac Inc. Mobile Home, VIN No. 0622687926A, Title No. 0005447101 and VIN No. 0622687926B, Title No. 0005447102* located on Lot #120 of the property leased by the Plaintiff to Defendant, SANDRA JEANNE ROBERTS.

22. Upon the Plaintiff being determined to be entitled to judgment in this Complaint, Plaintiff is entitled to a landlord's lien against said mobile home to enforce its judgment against Defendant for unpaid rent, utility bills, late fees, maintenance fees, court costs and a reasonable attorney's fee for the pursuit of this eviction and for related relief.

23. The Plaintiff claims entitlement to enforce its lien against said mobile home by judicial sale pursuant to Florida Statute §45.031.

24. The Plaintiff is entitled to credit toward the purchase of said mobile home in the sum representing all of Plaintiff's judgment against Defendants, SANDRA JEANNE ROBERTS, all costs of this proceeding and reasonable attorney's fees.

WHEREFORE, the Plaintiff prays this Honorable Court enter an order, ordering a judicial sale of the mobile home identified herein pursuant to Florida Statute §45.031 to occur between thirty (30) and forty-five (45) days from the rendition of judgment in the above-styled cause, and to grant the Plaintiff a credit toward the purchase of the mobile home representing the unpaid balance of the Plaintiff's judgment against Defendants, plus any costs expended by it for obtaining the judicial sale and a reasonable attorney's fee.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Eviction, Damages and Other Relief has been furnished to a private process server for service upon the Defendant(s), SANDRA JEANNE ROBERTS, 900 9th Avenue East, Lot #120, Palmetto, Florida 34221, and ANY UNKNOWN TENANT(S), 900 9th Avenue East, Lot #120, Palmetto, Florida 34221 on this 27th of February, 2020.


William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
Pleadings@wcpricelaw.com
Attorney for the Plaintiff